

Rupvanti Devi v. Purvanchal Electricity Distribution Nigam Limited and others

High Court of Judicature at Allahabad · Division Bench · 21 March 2023 · WRIT-C No. 9043 of 2023 · **Writ disposed; clause 6.5 objection permitted; coercive action stayed**

HEADNOTE

Electricity bill and recovery citation treating the connection as commercial — dispute held raisable under clause 6.5 of the U.P. Electricity Supply Code, 2005 — petitioner permitted to file an objection within two weeks — respondent no. 3 to decide it by a speaking order within four weeks — no coercive action until that decision — writ disposed of.

FACTUAL SUMMARY

Rupvanti Devi filed a writ against Purvanchal Electricity Distribution Nigam Limited and three others. She challenged a recovery citation dated 30 September 2022 / 18 October 2022 issued by respondent nos. 3 and 4, and the electricity bill on which that citation rested. Her case was that the connection was not commercial, but the respondents had raised the demand by treating it as a commercial connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Commercial-classification bill disputed by objection under clause 6.5

HOLDING

A dispute that the connection was not commercial, but the licensee raised the electricity bill and recovery citation by treating it as commercial, may be raised by an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner was permitted to file that objection within two weeks; respondent no. 3 is to decide it by a speaking order within the next four weeks; and until the decision, no coercive action shall be taken on the impugned recovery citation. The writ was disposed of on those terms. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging the bill and recovery citation was disposed of by permitting the petitioner to raise the same dispute through an objection under clause 6.5, rather than by adjudicating the demand. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The objection that a non-commercial connection had been billed as commercial was treated as a disputed-bill matter for which clause 6.5 is the remedy, to be decided by respondent no. 3 by a speaking order, with coercive recovery stayed until then. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONNECTION WAS COMMERCIAL, AND WHETHER THE IMPUGNED BILL AND RECOVERY CITATION WERE CORRECT

Left to respondent no. 3 on an objection under clause 6.5, to be decided by a speaking order. ¶ 1